

**New Mexico General Services Department
State Purchasing Division**

CODE OF ETHICS

The State Purchasing Division (SPD) of the New Mexico General Services Department firmly adheres to a strict code of ethics. Engaging in activities that are inconsistent with the proper discharge of a public employee's duties is considered to be ethical misconduct and may constitute a breach of public trust. Such activities can include participating in decisions that present a conflict of interest, or using confidential information for either actual or anticipated personal gain--or doing this on behalf of any other person.

A violation of ethical conduct and trust also includes the acceptance of money, gifts, or favors from an individual or concern which a public employee has reason to believe may become (or is) a party to a business transaction with the employee's employer.

In addition, it is incumbent upon every SPD employee to avoid engaging in any activity that may leave an impression that influence peddling is being condoned, or that favoritism is being extended to an individual or concern.

In practicing a high standard of ethical conduct, every SPD employee should:

1. Avoid becoming involved in transactions that could result in a conflict between personal interests and the interests of the State of New Mexico.
2. Prevent the intent and appearance of unethical or compromising conduct in relationships, actions and communications.
3. Never use confidential information as a means of obtaining financial enrichment or personal betterment for oneself or for any other person.
4. Decline personal gifts or gratuities from present or potential suppliers since this can influence, or appear to influence, procurement decisions.
5. Focus attention on the objectives and policies of the State of New Mexico.
6. Promote positive supplier relationships through courtesy and impartiality in all aspects of procurement operations and activities.
7. Strive to obtain the maximum value for each dollar of expenditure.
8. Grant all competitive suppliers equal consideration insofar as New Mexico or federal statutes & regulations, and SPD policy, demand.
9. Conduct business with potential and current suppliers in an atmosphere of good faith. Demand honesty in all aspects of sales representation.
10. Demand honesty in sales representation whether offered through the medium of a verbal or written, an advertisement, or a sample of the product.
11. Receive consent of the originator of any ideas, designs or information before exposing them to anyone, or using them in specifications for competitive purchasing purposes.
12. Make every reasonable effort to negotiate an equitable and mutually agreeable settlement of any controversy with a supplier, and/or be willing to submit any major controversy to an independent party for review, insofar as State of New Mexico policy permits.
13. Educate our internal clients on these ethical practices.
14. Develop skills, expand knowledge and conduct business that demonstrates competence and promotes the procurement profession.


MICHAEL C. VINYARD
STATE PURCHASING AGENT